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Case Number: 25STCV38047 Hearing Date: August 19, 2026 Dept: 729

Superior

Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

NADEEM BALLAJ, et al.,

vs.

PROD P PASCUAL, et al.

Case No.:

25STCV38047

Hearing

Date: August 19, 2026

Defendants Prod P. Pascual's and Cheri L. Pascual's demurrer to Plaintiffs Nadeem Ballaj's and Sanovia Nadeem's complaint is sustained with 20 days leave to amend as to the 1st, 2nd, and 3rd causes of action and overruled as to the 4th and 5th causes of action.

Defendants Prod P. Pascual ("Prod")

and Cheri L. Pascual ("Cheri") (collectively, "Defendants") demur to Plaintiffs

Nadeem Ballaj's ("Ballaj") and Sanovia Nadeem's ("Sanovia") (collectively, "Plaintiffs") complaint ("Complaint"). (Notice of Demurrer, pg. 1.)

Background

On December 29, 2025, Plaintiffs filed the operative Complaint against Defendants alleging five causes of action: (1) negligent misrepresentation; (2) intentional misrepresentation; and (3) concealment; (4) breach of contract; and (5) breach of implied covenant of good faith and fair dealing.

Defendants filed the instant demurrer on April 17, 2026. Plaintiffs filed their opposition on August 6, 2026. Defendants filed their reply on August 11, 2026.

Summary of Demurrer

Defendants demur to the entire Complaint on the basis it fails to state a claim. (Demurrer pg. 1; C.C.P. §430.10(e).) Defendants also demur to the entire Complaint on the basis it is uncertain. (Notice of Demurrer pg. 1; C.C.P. §430.10(f).)

Meet and Confer

Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (C.C.P. §430.41(a), emphasis added.)

A declaration must be filed with a demurrer regarding the results of the meet and confer process. (C.C.P. §430.41(a)(3).)

Defendants'

counsel's declaration states that on April 7, 2026, she sent a letter to Plaintiff's counsel via email asking to meet and confer further. (Decl. of Panicker, and that she did not receive a response ¶¶2-3.) Defendants' meet and

confer attempt is in violation of C.C.P. §430.41 because counsel did not attempt to meet and confer in person, by telephone, or by video conference. Letter and email writing does not constitute meeting and conferring in real time as contemplated by the statute; it is merely corresponding. However, the failure to sufficiently meet and confer is not grounds to overrule or sustain a demurrer. (C.C.P. §430.41(a)(4); *Dumas v. Los Angeles County Board of Supervisors* (2020) 45 Cal.App.5th 348, 355; *Olson v. Hornbrook Community Services District* (2019) 33 Cal.App.5th 502, 515.) Accordingly, the Court will consider the instant demurrer.

Legal Standard

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (*Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Insurance Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hospital District* (1992) 2 Cal.4th 962, 967.)

Failure to State a Claim

Negligent Misrepresentation,
Intentional Misrepresentation, & Concealment (1st, 2nd, & 3rd COAs)

“Negligent misrepresentation requires an assertion of fact, falsity of that assertion, and the tortfeasor’s lack of reasonable grounds for believing the assertion to be true. It also requires the tortfeasor’s intent to induce reliance, justifiable reliance by the person to whom the false assertion of fact was made, and damages to that person. An implied assertion of fact is ‘not enough’ to support liability.” (*SI 59 LLC v. Variel Warner Ventures, LLC* (2018) 29 Cal.App.5th 146, 154, internal citation omitted.)

“The elements of fraud that will give rise to a tort action for deceit are: ‘(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.’” (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974, internal quotation marks omitted.)

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice. [Citations.] Thus, the policy of liberal construction of the pleadings . . . will not ordinarily be invoked to sustain a pleading defective in any material respect. [Citation.] [¶] This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645, internal quotations omitted.)

“The elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.)

Plaintiffs allege that in June 2023, Plaintiffs purchased the property located at 11550 183rd Street, Artesia, CA 90701 (“Subject Property”) from Defendants pursuant to a California Association of Realtors (“C.A.R.”) Residential Purchase Agreement (“RPA”). (Complaint ¶9, Exh. B.) Plaintiffs allege they purchased the home for \$2,400,000. (Complaint ¶9.) Plaintiffs allege the closing date listed for the sale of the Subject Property is June 23, 2023. (Complaint ¶9.)

Plaintiffs allege that at the time of the sale, the Subject Property was listed as a 5-bedroom, 8-bathroom estate containing approximately 8,700 square feet of livable area. (Complaint ¶10, Exh. C.) Plaintiffs allege they purchased the Subject

Property with the understanding that the representations and disclosures made by all Defendants were accurate, or at the very least, made in good faith. (Complaint ¶11.)

Plaintiffs allege that following closing on the Subject Property, Plaintiffs learned through an independent, licensed appraiser that the actual square footage of the home contains only 6,693 square feet of livable area – a discrepancy of roughly 2,000 square feet. (Complaint ¶12.)

Plaintiffs allege the appraisal report uncovered that the Subject Property only had 4 bedrooms and 5.5 bathrooms suitable for livable use. This is a major departure from the 5 bedrooms and 8 bathrooms described in the property's listing. (Complaint ¶15.)

Plaintiffs allege that Paragraph 30 of the RPA requires the parties to mediate any dispute or claim arising from the property transaction prior to pursuing arbitration or court action. (Complaint ¶16.) Plaintiffs allege this mediation must be provided through the C.A.R. Real Estate Mediation Center for Consumers or any other mutually agreed-upon mediation provider.

(Complaint ¶16.) Plaintiffs allege they attempted to initiate mediation through C.A.R., seeking compensatory relief as well as punitive damages for the misrepresentations made by Defendants, and their counsel sent letters to Defendants on two separate occasions

demanding compensatory relief for the inaccurate and incomplete disclosures made by Defendants and requesting mediation provided through C.A.R. as per paragraph 30 of the RPA. (Complaint ¶¶17-18.) Plaintiffs allege that Defendants have failed to submit a reply to either letter sent by Plaintiff's counsel by the specified deadlines. (Complaint ¶19.)

Plaintiffs allege that Defendants owed Plaintiffs a duty to exercise reasonable care in accurately representing material characteristics of the Subject Property, including square footage, bedroom and bathroom count, and the configuration of livable space, when preparing and disseminating the MLS listing and all related disclosures. (Complaint ¶27.)

Plaintiffs allege that Defendants breached that duty by carelessly overstating the home's living area and room count and by failing to verify whether the areas included in their representations

qualified as Gross Living Area (“GLA”) under commonly accepted measurement standards. (Complaint ¶28.)

Plaintiffs allege that Defendants further failed to disclose that the listed square footage included substantial non-livable areas. (Complaint ¶29.)

Plaintiffs allege that Defendants had no reasonable basis to believe that the Subject Property contained 8,700 square feet of livable space or the number of bedrooms and bathrooms represented. (Complaint ¶30.) A minimal investigation, including adherence to ANSI Z765-2021 (the nationally adopted measurement

standard required by Fannie Mae since April 1, 2022) or consultation with a qualified professional, would have revealed the inaccuracy of these representations. (Complaint ¶30.)

Plaintiffs allege they reasonably and justifiably relied on Defendants' representations in evaluating the property's fair market value and in deciding to proceed with the purchase. (Complaint ¶31.)

Plaintiffs allege that their reliance on Defendants' misrepresentations was a substantial factor in causing them to purchase a property that was materially smaller and less valuable than what was represented. (Complaint ¶32.)

Plaintiffs allege that as a direct and proximate result of Defendants' negligent misrepresentations, Plaintiffs have suffered damages in an amount to be proven at trial, including, but not limited to, the diminished value of the property, overpayment at the time of the sale, and other consequential losses. (Complaint ¶33.)

Plaintiffs fails to allege that Defendants made the misrepresentation that the Subject Property contained 8,700 square feet of livable space or the number of bedrooms and bathrooms represented; Plaintiffs merely allege the existence of a Zillow listing, and that in “[i]n marketing and selling the Subject Property, Defendants represented – through the MLS listing and related disclosures” that the Subject Property contained 8,700

square feet of livable space or the number of bedrooms and bathrooms represented. Plaintiffs fail to that Defendants made the

misrepresentation at issue. Plaintiffs

state in their reply that they can cure any defect in the pleading that “does not sufficiently connect the Zillow listing or other marketing materials to Defendants.” (Opposition, pg. 4.) Plaintiffs state that they can allege:

The information displayed on Zillow and other real estate listings and market materials was populated from the MLS listing; that Defendants’ listing agent created and entered the MLS listing using information provided or authorized by Defendants as the sellers; and that Defendants knew and intended that prospective purchasers would rely on the MLS representations concerning the Subject Property’s square footage and number of bedrooms and bathrooms.

Plaintiffs will further allege that Defendants’ listing agent, acting within the course and scope of the agency relationship, made the same material representations in marketing materials issued by Compass, the real estate business Defendants retained to market and sell the Subject Property. Defendants, as principals, are responsible for the acts and representations of their agent undertaken within the scope of that agency. Plaintiffs possess copies of the Compass marketing materials, which were inadvertently omitted from the original Complaint, and can attach them as exhibits to an amended pleading. Accordingly, if the Court determines that the existing allegations or disclosures do not sufficiently identify who made or supplied the representations, Plaintiffs respectfully request leave to amend to plead these additional facts with greater particularity.

(Opposition, pgs. 4-5.)

Accordingly, Defendants’ demurrer to Plaintiffs’ 1st, 2nd, and 3rd causes of action is sustained with 20 days leave to amend.

Breach of Contract & Breach of
Covenant of Good Faith and Fair Dealing (4th & 5th COAs)

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff’s performance of the contract or excuse for nonperformance, (3) defendant’s

breach, and (4) resulting damage to the plaintiff.” (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

“There is an implied covenant of good faith and fair dealing in every contract that neither party will do anything which will injure the right of the other to receive the benefits of the agreement.” (Comunale v. Traders & General Ins. Co. (1958) 50 Cal.2d 654, 658, internal citation omitted.)

Plaintiffs allege that under the RPA, Defendants were required to provide complete and accurate disclosures concerning all material facts affecting the value and desirability of the property, including the home’s size, configuration, characteristics. (Complaint ¶53.) Plaintiffs allege that Defendants were obligated to refrain from making false, incomplete, or misleading statements regarding

those facts. (Complaint ¶53.) Plaintiffs allege that they fully performed on their obligations required under the RPA. (Complaint ¶54.)

Plaintiffs allege that Defendants materially breached the RPA by providing inaccurate and misleading information about the Subject Property, including overstating the home’s square footage and room count by failing to disclose that the represented figures also included nonqualifying areas. (Complaint ¶55.) Plaintiffs allege that the inaccuracies were later confirmed after closing through an independent appraisal conducted under ANSI Z765-2021 measurement standards. (Complaint ¶55.)

Plaintiffs allege that had Defendants complied with their contractual disclosure obligations under the RPA, Plaintiffs would have been accurately informed of the property’s characteristics and would not have purchased the property on the current terms or would have paid substantially less and would not have purchased it or would have purchased it at a substantially lower price. (Complaint ¶56.)

Plaintiffs sufficiently allege a cause of action for breach of contract based on the material terms of the contract

and the alleged breach. Plaintiffs sufficiently allege a breach of the covenant of good faith and fair dealing for the alleged failure to provide complete and accurate disclosures concerning all material facts affecting the value and desirability of the property, including the home's size, configuration, characteristics.

Accordingly, Defendants' demurrer to Plaintiffs' 4th and 5th causes of action is overruled.

Conclusion

Defendants' demurrer to Plaintiffs' Complaint is sustained with 20 days leave to amend as to the 1st, 2nd, and 3rd causes of action and overruled as to the 4th and 5th causes of action.

Moving Party to give notice.

Dated: August ____, 2026

Hon. Daniel M. Crowley

Judge of the Superior
Court